Counsel Will Pay for a Verified Record Read

Texas criminal direct-appeal lawyers and post-conviction writ lawyers do one job no tool on the market performs — reading a multi-volume reporter's record for preserved error, counsel's failures, suppressed evidence, bad science and sentencing defects, and citing every finding to volume, page and line — and Snot Nose Legal's engine already performs that job on paid family records. The appeal lawyer works a thirty-day brief clock on a flat or capped fee of roughly **$1,800–$7,500 per appeal** (Tarrant County fee schedule; Williamson County appeals voucher), so every hour of linear reading the product removes is money the lawyer keeps; the writ lawyer is retained at **$15,000–$45,000** per matter with the first, lowest-margin phase being a ~$10,000 investigation of whether a claim exists at all (Chris Perri Law; Bennett & Bennett), under a statutory bar that makes the first application effectively the only one (Art. 11.07 §4, HB 1291 text). Every incumbent that touches transcripts — CoCounsel, Lexis Protégé/CaseMap+, Vincent, TextMap, the e-discovery platforms — is built for deposition Q&A or civil document review, priced per seat at roughly $150–$640 a month or per gigabyte, and none is described anywhere as producing Texas "RR vol:page" output or a preservation posture (Thomson Reuters CoCounsel help; vLex Vincent support). The recommended plan builds on the engine as it stands on 2026-09-27 — seven trial screens, structured preservation/harm/vehicle fields, a counsel priority list and an investigation checklist — and ships in three phases: a **$199 Counsel Review** on the existing purchase rails with a direct-appeal clock and an *Anders* diligence appendix; a **Record Desk** that exposes the internal side-by-side verification view, a record-cite table export and an 11.07 form-fit export; and **Chambers** office tenancy for public defender appellate divisions with the writ-investigation layer. The founder's decisions are few but load-bearing: confirm per-record pricing before seats, resolve the brand before any public defender proposal, fund a direct-appeal reference ledger, and decide whether the verification view is a product or a liability.

Executive summary

The two personas in a sentence each. The *direct-appeal attorney* — one of roughly 130 board-certified criminal appellate specialists, a two-to-ten-lawyer public defender appellate division, or a private lawyer on a county appointment wheel — inherits a finished case at day 30–120 after sentencing, receives the clerk's and reporter's records as PDFs from the TAMES Attorney Portal, and must find every preserved error in them and brief it within a nominal 30 days, or honestly certify under *Anders* that there is none (Lawyer Legion directory, undated; 14th Court of Appeals, Attorney Record Portal; TRAP 38.6). The *writ attorney* — a solo or small-firm specialist retained by a family, or a lawyer inside the Office of Capital and Forensic Writs, an innocence organization, or the Harris County Public Defender's post-conviction practice — must decide whether a record and the facts outside it support an Article 11.07 application, then build one exhaustive, form-compliant filing because §4 bars a second and the federal one-year clock is tolled only while a "properly filed" state writ is pending (Falkenberg, 11.07 paper; Fifth Circuit, Larry v. Dretke commentary).

The jobs the product should own. Five, and they are the same five for both personas in different proportions. First, the preserved-error and issue audit of the entire record, with every objection traced to its ruling, its page, its preservation posture and its harm standard — the engine's `preserved_error` screen and the per-finding `preserved` / `harmStandard` / `vehicle` fields already express exactly this (analysis.service.ts; analysis-fields.ts). Second, the diligence record: proof of what was read, volume by volume, that an *Anders* brief or an 11.07 inventory can stand on. Third, the writ viability screen and grounds inventory, organized the way the CCA form demands and carrying the specific trial-counsel affidavit topics the IAC findings imply. Fourth, the clock — TRAP deadlines for the appeal, the 11.07 trial-court clock, AEDPA posture — computed per matter and labelled jurisdictional or discretionary. Fifth, in a later phase, verification of the lawyer's own statement of facts against the record, the one thing Clearbrief does that no criminal-record tool combines with issue-spotting (CCA Arbitrators on Clearbrief). The product should not own research, drafting of argument, or filing; vLex Fastcase is free to the Texas bar, and the existing roadmap already forbids the research pitch (State Bar of Texas blog, Oct 2024; professional_tier_expansion.md).

The gap in today's tools. Research AI summarizes uploaded transcripts and answers questions with page/line cites, but every documented workflow is deposition-shaped; no source describes multi-volume reporter's records, the clerk's-record/reporter's-record distinction, preservation analysis or Texas citation form (tools landscape inference from vendor

documentation). Pricing is wrong for the buyer: CoCounsel bundles are reported at **$225–$700 per seat per month** and Harvey at **$30,000+ a year minimum** (third-party figures, not official), while a solo's whole practice-management spend is under **$3,000 a year** (CostBench, reported; Bind Legal, reported; ABA 2024 Solo & Small Firm TechReport). The free floor does not reach these personas for document review: Everlaw for Good requires 501(c)(3) status or a federal CJA panel seat, which a county public defender office and a for-profit writ practice both lack (professional_tier_expansion.md §3.3). Deadline software is cheap but a Texas user rated LawToolBox one star for having "very little Texas based deadline options" (Software Advice review, Dec 2023). And trust has become the purchase criterion: Texas courts have sanctioned lawyers for hallucinated citations in at least one criminal appellate brief, the Fifth Circuit fined a Texas lawyer for sixteen fabricated quotations in February 2026, and the Texas Supreme Court proposed TRAP 9 amendments aimed at AI-fabricated authority with an expected October 2026 effective date (TDCAA case summaries, Ex parte Lee; Fifth Circuit, Fletcher v. Experian; Law360 on proposed Texas rules).

The plan's phases. Phase 0 (now to professional launch) re-runs the eval gate on the v2 prompt set and the production model, adds direct-appeal must-finds to the reference ledgers, and runs the practitioner interviews listed at the end of this report. Phase 1 ships **Counsel Review at $199 per record** on the existing Stripe Checkout, upload, pipeline and PDF rails: a bar-number sign-up, a matter form keyed to vehicle, TAMES-volume recognition at upload, a Part B-first packet with the direct-appeal clock, an *Anders* diligence appendix, 11.07 grounds grouping and an affidavit-topics list. Phase 2 ships the **Record Desk**: the internal QA side-by-side viewer exposed read-only to the ATTORNEY role for per-finding verification and feedback, a statement-of-facts cite-table export, an 11.07 form-fit export with TRAP 73.1 compliance checks, a TRAP 9.4 word-budget helper, a per-matter deadline calendar, and the **Advocate** seat. Phase 3 ships **Chambers** office tenancy for public defender appellate divisions and clinics, the A/V add-on for habeas investigators, a records-requested/received tracker on the investigation checklist, and a §2254 exhaustion map. The phases follow the sequencing the professional-tier document already proposed (Counsel Review at month 4, Advocate at month 7, first Chambers office at month 10) and keep its build estimate of roughly nine engineering-weeks, with one correction: the preserved-error screen that document listed as unbuilt has since shipped in prompt set v2 behind the eval gate (professional_tier_expansion.md §5.3; analysis.service.ts, prompt set v2 comment).

Decisions the founder must make.

Decision	Recommendation in this report	Why it is on the critical path
Per-record first, seats second	Confirm Counsel Review at $199 before any Advocate/Chambers build	Solo tech budgets are tiny and per-brief vendor charges of $300–$1,300 are already accepted; a seat competes with practice-management spend (LawNext Directory, Clearbrief; TypeLaw pricing)
Brand for procurement	Adopt a professional sub-brand before the first PDO pilot proposal	A chief defender's budget memo and a county purchasing file are the surfaces PRD R-5 warned about (mvp_v1_prd.md §8)
A direct-appeal reference ledger	Pay a board-certified appellate lawyer to label a second trial record for preserved error and harm	The Gary ledger's five canaries are writ-weighted; Persona 1's primary screen has never been scored against a direct-appeal lawyer's issue list (manual_vs_engine_gary_2026-09-27.md)
Expose the verification view	Yes, in Phase 2, read-only, scoped to findings and pages — not the graph, chat or drafting	It is the artifact Judge Starr's "checked for accuracy by a human" standard and NACDL's verification duty demand, and it already exists internally for QA (The Register on Starr order; NACDL, Parity in Practice)
Part A as a client letter for lawyers	Offer it off by default; counsel-reviewed copy; never routed to the family without the lawyer	Keeps the family-facing voice inside the attorney relationship and avoids the channel-conflict optics at TCDLA
PDR scope	Exclude PDR merits work; include the PDR clock and the *Wilson* letter checklist	The engine reads records, not court-of-appeals opinions; a PDR is argued on the opinion (TRAP 68.4, Ruledex)

Decision	Recommendation in this report	Why it is on the critical path
Capital cases	Keep the 11.071 exclusion from the PRD	OCFW represents about 70% of initial capital writs and has its own clocks (OCFW)

How much to trust the numbers in this report

Every one of the five research notes behind this report carries the same method caveat: the egress proxy blocked direct fetches of txcourts.gov, tidc.texas.gov, tbls.org, tcdla.com, the statutes site and every vendor pricing page, so **every external figure below comes from a search-engine extract of the cited page, not from the page itself**, and the shared search budget ran out before several verification queries could run. Where a note went further and flagged a number as an estimate, a third-party or secondary report, an undated directory, or rule text recalled from training rather than read, this report repeats the flag inline. The repository documents and code are the exception: those were read in full and are cited by path. The practical consequence is that the direction of every finding is well supported by multiple independent extracts, while any single figure — a fee cap, a docket count, a vendor price — should be re-read from the source before it appears in a pitch deck or a pricing page.

Persona 1: the direct-appeal lawyer works a TRAP clock on a flat fee

Who they are. Direct-appeal work in Texas is split among a small specialist cadre, urban public defender appellate divisions, private appointed counsel on county lists, and the state's inmate-counsel office. Two undated third-party directories put the number of lawyers board-certified in criminal appellate law at **132–134**, a credential created in 2011 and held by a first cohort of about 84; a firm page claims 87 lawyers hold both the criminal-law and criminal-appellate certifications (Lawyer Legion, undated; texaslegal.guide, undated; TDCAA Journal, 2011; Blizzard Law, 2021). The Harris County Public Defender's Appellate Division launched in 2011 with a chief, ten assistant public defenders and support staff, projected at roughly 350 appeals a year; a 2013 evaluation found it staffed for 275 cases, assigned 206 in FY2012, and reversing about **5% of cases against roughly 3%** for criminal appeals generally in the First and Fourteenth Courts (Harris County PDO brochure, 2011; CSG Justice Center evaluation, 2013). Dallas County's Appellate Division has five attorneys and one legal secretary and handles every felony and misdemeanor direct appeal the office generates; Bexar County's Appellate Division is one of four departments; TDCJ's Independent Office of Inmate Counsel (formerly State Counsel for Offenders) has an Appellate Section for in-prison offenses (Dallas County PD; Bexar County PD; TDCJ IOIC). The professional-tier document's archetype — "an appellate division is typically two to five lawyers carrying every appeal an office of dozens generates" — holds (professional_tier_expansion.md §3.1). Private appointed counsel carry the majority of indigent appeals: in Harris County only about 17% of the 88,000-plus indigent defendants appointed counsel in 2025 got a public defender (Community Impact, Mar 2026). Prosecutors also hold the credential and do the mirror-image job (Hoodline, Jan 2024).

Caseload benchmarks. A Harris County budget document cites a TIDC weighted-caseload standard of **31 appeals per attorney per year**, treating an appeal as about 4.13 felonies, alongside a national standard of 25 (Harris County Budget Book, Public Defender). Out-of-state standards scale by transcript length and tell the same story: Washington's rule assumes 36 appeals a year at 350-page transcripts, actual transcripts now average nearly 400 pages with more exceeding 1,000, the bar has proposed dropping to 25, and surveyed appellate defenders reported **51-hour weeks** (Washington OPD decision package, 2025). California pays appointed appellate counsel for record review at one hour per 50 pages (California Appellate Project – LA guidelines, 2018). TIDC's own 2016 appellate caseload addendum exists but its headline number could not be read this session (TIDC appellate addendum, Dec 2016); it is the single most important Texas document to open next.

The jobs to be done. The appellate lawyer's job, in practitioners' own framing, is a preserved-error audit: "the trial lawyer preserves error, and the appellate lawyer finds it and frames the argument," and the error is often "buried in a ruling that

seemed right at the time, or in an instruction nobody objected to" (Bennett & Bennett; Pullan & Young). TRAP 33.1 requires the record to show a timely, specific objection and a ruling; an unpreserved issue is generally waived outside narrow exceptions, and reversal then turns on TRAP 44.2's harm standards — constitutional error reversed unless harmless beyond a reasonable doubt, other error only if it affected substantial rights (rule text recalled from training in the notes, not re-read this session) (TDCAA-hosted TRAP). Experienced practitioners read from the end: verdict, closing, post-trial motions, then jury instructions and pretrial rulings "where many appealable errors tend to sit," building issue lists, timelines and a who's-who while tracking every objection to its ruling (GMSR, Winning on Appeal Begins with the Record). The jobs, then, are: audit the whole record for preserved error and rank by harm standard; decide early whether this is a merits brief or an *Anders* brief; write a statement of facts and argument in which every factual sentence carries a record cite, because Texas courts treat a brief without record references as presenting nothing for review (Tex. App. opinion, FindLaw; Lucio application, FindLaw); manage the clock; and discharge the two client-communication duties the CCA enforces by habeas.

The workflow and its clock. The clock runs from sentencing. A motion for new trial is due within 30 days and is overruled by operation of law at 75 (Williams v. State, CCA 2020; Dallas Criminal Defense Lawyer Blog, secondary). Notice of appeal is due 30 days after sentencing, or 90 if a timely motion for new trial was filed, with a 15-day extension window (the extension rule is recalled from training in the notes) (Williams v. State). The record is due 60 days after sentencing, 120 with a motion for new trial, and reporters may be extended in 30-day increments (TRAP 35, Ruledex). The appellant's brief is due 30 days after the later of the clerk's or reporter's record, and extensions are routine — prosecutors on a TDCAA forum complain the deadline "has become loose in practice," though the Eleventh Court reportedly rejects "counsel is busy" (TRAP 38.6; TDCAA forum). After judgment, a petition for discretionary review is due 30 days after the court of appeals' final ruling, with a 15-day extension, capped at **4,500 words** and structured by TRAP 68.4 (CCA filing checklist; TRAP 68.4, Ruledex). The CCA granted **47 of 876** PDRs filed from the courts of appeals in FY2024, about 5.9% of those disposed (CCA Annual Report FY24). The record itself arrives through the TAMES Attorney Portal as per-volume PDFs available only to attorneys of record for 60 months; sealed records and audio/video exhibits are excluded and must be viewed at the court (14th COA Attorney Record Portal; CCA Attorney Portal). Reporters' records follow a Uniform Format Manual with fixed page layout, and 2025 exhibit guidelines require text-searchable PDF exhibits and raise the portal file limit to 10 GB (Uniform Format Manual; 2025 exhibit guidelines). Two further duties shape the workflow. Under *Kelly v. State*, appointed counsel filing an *Anders* brief must notify the client, provide a form motion for pro se access to the record, and the court must confirm record access before ruling (Kelly v. State, vLex; Eastland opinions applying Kelly). Under *Ex parte Wilson*, counsel must tell the client the case was affirmed and that a pro se PDR is available; the CCA routinely grants out-of-time PDRs when that letter was not sent (CCA unpublished opinion 74649). The CCA likewise restores appeals when counsel admits by affidavit that notice was late (CCA per curiam 74541).

Economics. Appointed appellate pay is set county by county and is the strongest fact in this report for a productivity product. Travis County pays a **$2,000 flat fee** for a felony appeal and **$1,000 for an *Anders* brief**, with itemized time to the tenth of an hour; Tarrant pays $50–$125 an hour capped at **$1,800**; Collin pays $3,500 for an appeal from trial; the 81st/218th districts pay $60–$120 an hour capped at $4,500; Bexar caps "Appeals and PDRs" at $6,500 (capital $15,000) and requires the brief attached to the voucher; Williamson pays $155 an hour to $7,500; Midland $200 an hour to 20 hours or $4,000; Harris pays uncapped hourly since February 2023 and its auditor has reviewed appointed-counsel billing as costs rose from **$78.3M to $112.0M** between FY2023 and FY2025 (Travis County felony fee schedule, 2025; Tarrant schedule; Collin schedule; 81st/218th schedule, 2025; Bexar voucher form; Bexar voucher guidelines, 2025; Williamson voucher; Midland schedule; Harris schedule, 2023; Harris County Auditor review). Federal CJA counsel in the Northern District, by contrast, earn $175 an hour with a $9,700 appeal maximum (N.D. Tex. CJA notice). The notes' inference is worth stating as the product's economic thesis: at a $2,000 flat fee and a conservative 40–60 hours per felony appeal (the hours assumption is the researcher's estimate, unsourced), the effective rate is **$33–$50 an hour** against $125–$175 trial rates in the same counties, and at $50–$85 an hour with a $2,500–$3,000 cap a 2,000-page record read at California's 50-pages-an-hour rate consumes most of the cap before drafting begins (6AC testimony on flat fees; NACDL, Rationing Justice). New legislation sharpens the billing artifact: HB 1445, effective 1 September 2025, requires every county schedule to state fixed or min/max rates, include an itemization form, and pay within 45 days (HB 1445 enrolled). Private retainer

ranges for Texas criminal appeals specifically were not found in any reliable source; the Texas median private hourly rate is $368 and Clio's Texas criminal-lawyer average is $221 (State Bar of Texas 2025 rate report; Clio Texas rates).

What they do today, and what is unknown. The only sourced facts about habits are structural: records are consumed as PDFs from TAMES; briefs are drafted in a word processor because TRAP 9.4's certificate of compliance relies on the word processor's count against a **15,000-word** limit; filings go out as text-searchable PDFs through eFileTexas with complainant and witness names redacted (Supreme Court Misc. Docket 12-9129; 12th COA e-filing guidance). Whether they annotate in Acrobat or print, whether they build transcript digests, how many hours go to each phase, and how much paralegal support they have are all unsourced and belong in interviews. The Washington testimony — "the appellate defender may be the only person to review the entire record," a "constant backlog," forced triage — is the best available proxy for the Texas division's lived experience (ACLU of Washington comment, Jan 2025).

Persona 2: the writ lawyer gets one shot and pays to find out whether it exists

Who they are and the volume they face. Non-capital 11.07 habeas is a docket of about **2,100 applications a year** at the Court of Criminal Appeals — 2,126 added in FY2024 and 2,111 received in FY2025, down from 5,410 in FY2001 and 3,439 in FY2018 (CCA Annual Report FY24; CCA Annual Report FY25; CCA FY2001 caseload trends; UT CLE 11.07 guide). The professional-tier document's figure of 3,325 for FY2021 is therefore two fiscal years stale, as it itself cautioned; the direction is unchanged (professional_tier_expansion.md §8). The FY2025 outcome lines read **57 grants**, 4 denials in the filed-and-set section, and **270 dismissals for non-compliance** — roughly 13% of filings disposed on form alone; the extract's column headers were cut off, so the pending/added/disposed reading is an inference (CCA Annual Report FY25). No source gave the pro se versus counsel split, though OCA reports that original proceedings and pro se appeals are 54% of new court-of-appeals filings in FY2026 (OCA LAR FY28-29). The institutional actors are few. OCFW represents about 70% of people sentenced to death in initial capital post-conviction, took "a limited number of non-capital forensic science cases" after 2015, and in 2018 averaged 8.5 co-counseled cases per attorney against a national standard of 4–6, with 27% attorney and 38% investigator attrition (OCFW; LBB Agency 215 summary, 86R). The Innocence Project of Texas screened **479 new requests in January–May 2025 and 776 in June–December 2025** against 152 and 106 cases under active investigation, says replies can take "several months," and a BJA grant abstract records that initial reviews were done by a single part-time paralegal approaching retirement (IPTX/TT/A&M report, Jan–May 2025; IPTX/TT/A&M report, Jun–Dec 2025; IPTX, Submit a Case; BJA award abstract). Harris County's public defender has a lawyer whose practice "is dedicated to post-conviction litigation" and who authors the CCA-hosted 11.07 practice paper; Harris County's DA has a Post-Conviction Writs Division; Dallas County's PD stopped accepting 11.07 appointments in 2008 "because of the large increase in appointments on direct appeals" (Falkenberg bio; Harris County DA bureaus; Dallas PD report, archived). The private writ bar is a small boutique market concentrated in Houston, Dallas and Austin; its size is unknown.

Economics. There is no general right to appointed counsel on a non-capital writ; appointment is discretionary, and mandatory only under Article 11.074 when the State agrees the applicant is innocent or convicted under a void law (HB 1346 analysis, 84R; SB 662 analysis). A 2025 bill that would have required counsel for indigent 11.073 applicants passed the House 124–14 and died in the Senate (Texas Defender Service). Private fees across three independent firm sites share one shape — a paid consultation, an investigation phase, then a litigation phase: Bennett & Bennett charges $500 to consult, "at least $10,000" to investigate and "at least $15,000" to file; Chris Perri Law quotes **$15,000–$45,000, most around $30,000**, roughly half for investigation, with experts usually $5,000–$10,000; Broden & Mickelsen charges an evaluation fee first and a litigation fee only if a valid basis is found (Bennett & Bennett; Chris Perri Law; Broden & Mickelsen). A retained applicant also pays for any court-ordered forensic testing that the State would otherwise fund (Art. 11.07 §3(d), texas.public.law). Capital 11.071 counsel is appointed with state reimbursement to the county capped at $25,000 per application (Art. 11.071, texas.public.law). The notes' inference is the product's thesis for this persona: the screening phase is the lowest-margin, highest-risk, least-supported step, and it is the step the consumer product already prices at $299.

The workflow and its clock. The 11.07 process is statutorily rigid. The application goes to the convicting court on the CCA's prescribed form; the State must answer within 30 days (15 in older versions); within 20 days after that the court must designate controverted fact issues or the clerk transmits the record to the CCA immediately, and a late designation order has been held to "interfere with the clerk's duty to transmit"; designated issues must be resolved within 180 days of the State's receipt; the CCA then denies or dismisses without written order, remands, or files and sets (Art. 11.07, texas.public.law; CCA opinion No. 73,799; TRAP 73.5). Fact issues are resolved by affidavit, deposition, interrogatory, testing or hearing, and trial counsel's affidavit is central: in one case the trial judge found counsel's performance adequate "on the basis of Jaynes' affidavit," and the CCA routinely orders trial counsel to respond to IAC allegations by affidavit (Fifth Circuit, 05-41747; CCA Fletcher order, 2020). Section 4 bars a later application on the same conviction unless the factual or legal basis was unavailable or the applicant shows by a preponderance that no rational juror could have convicted; the CCA reads "subsequent" to cover "all applications ... regarding the same conviction," and bills to loosen the bar in 2019, 2021, 2023 and 2025 were not confirmed enacted (HB 1291 text, 89R; CCA opinion No. 73,064). Prosecutors' own checklist asks first whether an application "does not overcome the §4 subsequent writ bar" (TDCAA, A Valuable Checklist for Writs). Federally, AEDPA's one-year clock is tolled only by a "properly filed" state application: a Texas writ filed while direct appeal is pending does not toll, and neither does one dismissed as an abuse of the writ (Casemine, Larry v. Dretke; Fifth Circuit, 09-20093). Texas itself sets no time limit on 11.07, though laches can bar stale applications — a rule the PRD's deadline engine already encodes (TDCAA forum; mvp_v1_prd.md FR-5). Adjacent vehicles have different clocks and fact-finders: an 11.072 community-supervision writ is decided by the trial court within 60 days of the State's answer with no extension and appealed to the court of appeals; an 11.09 misdemeanor writ likewise (TDCAA 11.072 checklist; TDCAA Journal on 11.09).

Inputs and outputs. The legally operative document is the CCA form, not the memorandum: every ground must appear on the form, each limited to the two pages provided, with legal argument in a separate memorandum capped at 15,000 words or 50 pages; "any ground not raised on the form will not be considered," verification is by notary oath or inmate declaration, and "failure to follow these instructions may cause your entire application to be dismissed" (TRAP 73.1; 11.07 form, 2018 version; CCA filing checklist). The district clerk is the hub, serving every pleading, affidavit, exhibit and proposed finding on all parties (TRAP 73.4). Inputs are the trial and appellate record, trial counsel's file and affidavit, the prosecutor's file — which the Michael Morton Act opens only for offenses on or after 1 January 2014, leaving older files to office discretion — and expert material (Texas Appleseed, Michael Morton Act report). The package counsel produces, inferred from the rule text rather than from a practice guide read in full, is the form with each ground on its own two-page block, the memorandum, exhibits and affidavits, verification, then proposed findings, objections to the State's findings, and any supplement under TRAP 73.8.

The jobs to be done. The professional-tier document's five jobs for this persona survive the research intact and gain sharper evidence: triage before quoting a fee; the record review for a retained matter; fitting the form; the affidavit bottleneck; and the clock (professional_tier_expansion.md §4.2). Two refinements follow from the notes. The triage job is bigger than the firm — IPTX's funnel declines well over 85% of requests and its bottleneck is a single screener, so a structured, grounded pre-review is as valuable to an innocence organization's intake as to a solo's fee quote. And the form-fit job is measurable: with 270 non-compliance dismissals a year, form validation against TRAP 73.1 addresses a visible slice of the docket.

Today's tools summarize depositions, not reporter's records

The tools landscape divides into five categories, and the table below records what each does with a transcript, what it costs, and where it falls short for a Texas criminal appellate or habeas record. Prices are official only where the note said the search result identified the vendor's own page (TypeLaw); everything else is reported by third-party comparison sites and should be treated as low-reliability until re-read.

Category and product	What it does with a transcript or record	Price (reported unless noted)	Where it falls short for this record
Westlaw / CoCounsel (Thomson Reuters)	"Review Documents" answers questions across deposition transcripts, medical records and discovery at about 1 minute per 50 pages per question; Quick Check verifies quotations against cited cases and builds a table of authorities (TR help; Quick Check)	~$225–$700/seat/mo bundles; ~$639/user/mo for a solo with CoCounsel Essentials; $50/seat/mo for legal nonprofits only (CostBench; Vaquill; LawNext, Oct 2024)	Deposition-shaped; the notes infer a 3,000-page record with 20 questions is ~20 hours of processing; no preservation posture; no RR/CR cite form; Casetext's standalone platform and its legacy pricing were shut down April 2025 (TR migration page)
Lexis+ with Protégé, CaseMap+/TextMap	Brief Analysis summarizes uploaded documents; transcript summarization lives in CaseMap+ AI, a separate product; TextMap annotates and issue-codes testimony (LexisNexis community, Jun 2024; CRIV blog, Jul 2025)	$128–$494/user/mo bundles, quote-based (CostBench)	Deposition issue-coding by hand; no issue generation from a criminal record; no Texas deadlines
vLex Vincent	"Analyze a Deposition" takes transcript, audio or video, builds summaries, timelines and contradictions, answers with page/line cites; scored 69.2% on transcript analysis vs a 71.1% lawyer baseline (vLex support; Vals.ai)	Primary law free to Texas bar members; Vincent is a paid upgrade, reported ~$69–$399/user/mo (State Bar of Texas blog; Vaquill)	The free floor is research, not record review; deposition workflow; no appellate structure
Harvey	Enterprise assistant	~$30,000+/yr minimum with 20–25 seat floors (Bind Legal)	Unreachable for solos and PDOs
Clearbrief	Scores each record citation in a draft against the uploaded source passage; finds support for uncited facts (CCA Arbitrators)	$150/user/mo or $300/brief; free for academics (LawNext Directory)	Verifies cites in a draft; does not digest the record or spot issues — the closest product to one of the five jobs, not to the core job
TypeLaw, Briefpoint, BriefCatch	Brief formatting with $400 add-on to hyperlink record cites; discovery drafting; Word style checker (TypeLaw pricing, official; SoftwareFinder, Briefpoint; LawNext, BriefCatch)	$895/brief + add-ons, $400/mo self-serve; from $89/mo; $240/yr	Downstream of issue-spotting; set the per-brief price precedent
TranscriptPad / Lit Suite	iPad transcript review and issue coding	$600 subscription per App Store listing, term unclear (Apple App Store)	Deposition page/line format; no multi-volume record constructs described
Everlaw, DISCO, Relativity, Logikcull	E-discovery review with AI assistants, priced per GB; Everlaw for Good is free to 501(c)(3)s and CJA panel attorneys (Everlaw pricing; BusinessWire, DISCO; Everlaw for Good)	DISCO small deployments reported $20,000–$40,000/yr (AI Vortex)	Per-GB pricing is an awkward fit for a few hundred MB of record PDFs; the free program excludes county PDOs and for-profit firms

Category and product	What it does with a transcript or record	Price (reported unless noted)	Where it falls short for this record
JusticeText, Rev, Reduct, Matey/CrimD	Transcription and analysis of bodycam, jail calls and recorded hearings; JusticeText is live at Harris County PDO and 50+ agencies; Matey raised $7.5M in Austin for discovery review (JusticeText, Harris County; LawNext, Sep 2022; ACCESS Newswire, Matey)	JusticeText ~$1,280/defender/yr in Virginia's contract; Rev from $0.25/min with a TCDLA member discount (Rev x TCDLA)	Trial-stage evidence tools; adjacent for habeas investigators, not for the appellate record; the most plausible entrants into transcripts
LegalServer, defenderData, Clio-class PM	Case management: Harris County PDO moved to LegalServer in 2021; Bowie, Collin and Fort Bend use defenderData (LegalServer; Justice Works)	PM tools $49–$179/user/mo (CostBench)	No analysis; a Chambers product must coexist with LegalServer
LawToolBox, Docket Alarm, CalendarRules	Court-rule deadline calendaring	$16–$29/user/mo; $39.99–$99/mo plus usage (LawNext Directory; Fitgap)	A Texas reviewer rated LawToolBox 1/5 for Texas coverage; TRAP/CCA rule sets unconfirmed in any tool (Software Advice)
TAMES, re:SearchTX, eFileTexas, PACER	Record delivery (PDF, attorneys of record only), docket documents at $1 per 1–10 pages then $0.10/page, e-filing, federal dockets at $0.10/page rising to $0.12 in 2027 (re:SearchTX FAQ; M.D. Pa. PACER notice)	—	No API; the product must accept PDF uploads and cannot pull records itself

Three conclusions follow. The differentiator is the appellate and habeas record structure — multi-volume reporter's records with master indexes and exhibit volumes, the clerk's-record distinction, objection-to-ruling tracing, Texas citation form — not generic transcript Q&A; no source describes any tool supporting those constructs, which is absence of evidence rather than proof, but it is consistent across every vendor researched. Price floors matter: credible solo entry points are roughly $69–$270 a month, versus $400–$640 for CoCounsel bundles, and the share of legal professionals using legal-specific AI fell from 58% to 40% in a year while general AI use rose to 79%, which the notes read as price sensitivity (2Civility summary of Clio 2025). And reliability is the open wound: Stanford found retrieval-grounded legal tools hallucinating in 17–34% of queries, and the crowd-sourced tracker counted about 1,240 U.S. hallucination incidents through July 2026, 668 of them in 2026 alone (Stanford HAI; MSBA, July 2026, secondary). Notably, every Texas sanction the notes found involved a general-purpose tool — ChatGPT or Google — not a legal-research product, and that is the population a verifiable record tool at consumer-adjacent pricing addresses.

The pain-point catalogue, with the engine feature that answers each

The catalogue below pairs each documented pain with its evidence and with the product response the development plan carries. Where the pain is attested only by inference or out-of-state proxy, the table says so.

Pain	Evidence	Who feels it	Product response (phase)
Record-review hours exceed what the fee pays for	California pays 1 hr/50 pp; Washington transcripts average ~400 pp with more over 1,000 and defenders report 51-hr weeks; Texas caps of $1,800–$7,500 (CAP-LA guidelines; WA OPD)	Both; acute for appointed appellate counsel	Full-record screen with priority list and page-anchored excerpts, so reading becomes verification (Phase 1); volume/page inventory in the diligence appendix speaks the workload language regulators use
Error is buried in un-objected moments and the preservation call is outcome-determinative	TRAP 33.1; "buried in a ruling that seemed right at the time"; courts hold issues waived for inadequate briefing and missing record cites (Bennett & Bennett; TDCAA, 38.1(i))	Persona 1	`preserved_error` screen with objection → ruling → page → preserved yes/partial/no → harm standard, already in prompt set v2 (analysis.service.ts) (Phase 0 validation, Phase 1 delivery)
The *Anders* decision consumes a full read either way and must be documented	Federal Anders share 18% nationally and 42.8% in the Southern District of Texas in FY2010 (federal proxy, dated); *Kelly* duties (USSC Table 55, FY2010; Kelly v. State)	Appointed Persona 1	*Anders* diligence appendix: screens run, pages read per volume, OCR confidence, exclusions; *Kelly* packet checklist (Phase 1–2)
Every factual sentence needs a volume:page cite and TOC/index/word count are mandatory but excluded from the count	TRAP 9.4 and 38.1; certificate of compliance relies on the word processor (Misc. Docket 12-9129)	Persona 1; Persona 2 for the memorandum	Statement-of-facts cite table export in Texas form; countable-words helper and certificate text (Phase 2)
Deadlines are many, some jurisdictional, and reporters are late	NOA 30/90, record 60/120, brief 30, PDR 30+15; reporter held in contempt; appeal abated over a late record (ABA Journal; Trevino v. State, 2026)	Persona 1	TRAP clock chained from sentencing and record-filed dates, jurisdictional vs discretionary labels, ICS export (Phase 1 posture, Phase 2 calendar)
Missed *Wilson* letters and late notices generate CCA habeas grants and counsel affidavits	Out-of-time PDR and appeal grants when counsel admits fault (CCA 74649; CCA 74541)	Persona 1	Post-affirmance checklist and letter template; the consumer FR-11 appeal-restoration screen already detects the symptom (mvp_v1_prd.md FR-11) (Phase 2)
The writ screening phase costs ~$10,000 before anyone knows if a claim exists, and §4 makes it the only shot	Firm fee pages; §4; prosecutors screen §4 first (Bennett & Bennett; TDCAA checklist)	Persona 2	Counsel Review at $199 as the viability read; complete-inventory framing (FR-8) and subsequent-writ tagging (FR-9) carried into the attorney packet (Phase 1)
The application fails on the form	270 non-compliance dismissals in FY2025; two pages per ground; "any ground not raised on the form will not be considered" (CCA FY25; 11.07 form)	Persona 2	Grounds grouping in Part B (Phase 1); form-fit export with two-page budget, memorandum word budget and TRAP 73.1 checklist (Phase 2)
Trial counsel's affidavit decides IAC and is the dominant remand driver	Affidavit-based findings; CCA affidavit orders (Fifth Circuit, 05-41747; CCA Fletcher order)	Persona 2	Affidavit-topics list derived from IAC findings' `develop` steps (Phase 1); records-requested/received tracker on `dependsOn` (Phase 3)

Pain	Evidence	Who feels it	Product response (phase)
AEDPA miscalculation; premature or abusive state filings do not toll	*Larry v. Dretke*; abuse-of-writ dismissal (Casemine; Fifth Circuit 09-20093)	Persona 2	Existing deadline engine's finality, tolling-direction and laches rules (mvp_v1_prd.md FR-5); §2254 exhaustion map (Phase 3)
Intake triage at innocence organizations is a one-person bottleneck	BJA abstract; 1,255 IPTX requests in 2025 vs ~100–150 active (BJA)	Clinics (Chambers)	Consented referral packets from the consumer tier (US-5) and Chambers seats for clinic screeners (Phase 3)
Clients are hard to reach; the family is the real-time channel	Two-week legal mail, month-long call scheduling, months without calls in federal facilities (out-of-state and federal sources; nothing TDCJ-specific found) (NYCLA/ABA report; NACDL letter, 2023)	Persona 2	The consumer packet (Part B plus uploaded documents) handed to counsel starts the consultation from facts; inference, not a documented practice
Fear of hallucination, confidentiality and sanctions; verification is the purchase criterion	Only 33% of small-firm lawyers comfortable with AI research; Texas sanctions; Opinion 705; NACDL's verification duty (Law360, Smokeball survey; Opinion 705)	Both	Grounding as a hard filter (FR-6/FR-7); "verified against record" mark per finding; the Record Desk verification view (Phase 2)
Non-PDF exhibits and A/V are out of band	Portal excludes audio/video; viewed at the court (14th COA)	Both; habeas investigators most	Explicit "not reviewed" inventory (Phase 1); A/V add-on (Phase 3, per roadmap v1.1)

Two pains in the professional-tier document deserve a correction in light of the notes. That document described the Casefleet/aged-scan problem as the writ practitioner's tooling pain; the notes found no practitioner statement on PDF or Word habits at all, so the aged-scan claim rests on the product's own measured OCR work — a 602-page scanned reporter's record digitized at $0.91 — rather than on practitioner testimony (business_case_12mo.md §5). And the document cited a 2026 Clio figure of 71% solo AI adoption; the primary 2025 Clio release says only 8% of solos and 4% of small firms use AI "widely or universally," and the 71% figure appears only in an unverified secondary source, so adoption should be described as broad-but-shallow, not as solved (Clio press release, 2025; NC Bar, May 2026, unverified).

Market: a few hundred lawyers, several thousand matters, one cheap channel

Size. The specialist segment is roughly 130 certified criminal appellate lawyers inside a TCDLA of **3,864 members** (goal 4,000) and an HCCLA of 700-plus; the realistic practitioner pool is several hundred — certified specialists plus PD appellate staff in Harris, Dallas, Bexar, Travis, Tarrant and El Paso plus county-wheel attorneys — not thousands (TCDLA; Texas Bar Blog on HCCLA, 2016). The matter pool is larger and steadier: **847 PDRs** and **2,443 habeas applications** (including supplemental 11.07 and 11.071 writs) reached the CCA in FY2025, and if the Second Court's 470 criminal filings in FY2024 are typical of a mid-to-large court, statewide direct criminal appeals plausibly run 4,000–6,000 a year — an extrapolation, not a sourced figure, because the OCA statistical report's appellate tables could not be opened (CCA Annual Report FY25; 2nd COA docket statistics FY2024). Court-of-appeals filings rose 4–8% a year in FY2023–FY2025 and are up 20% in FY2026, and felony filings hit an all-time high in FY2024 (OCA LAR FY28-29; OCA FY24 statistical report). Nationally, NACDL's 90 affiliates total up to 40,000 attorneys and NAPD has close to 30,000 members (NACDL release, 2026; NAPD membership slides, Nov 2025). The professional-tier document's payroll arithmetic — forty Counsel Reviews a month is under 1% of annual 11.07 intake, eighty Advocate seats under 2% of TCDLA — remains believable on these numbers, with the caveat that the 11.07 denominator is now ~2,100 rather than 3,325 (professional_tier_expansion.md §7.4).

Buying behaviour. Solos budget little and rarely: 41% of solos budget for technology at all, and most spend under $3,000 a year on practice management (ABA 2024 TechReport). They discover tools through bar discounts, free trials and CLE;

Rev's TCDLA partner page and a January 2026 TCDLA seminar slot for Rev's "citation-first AI" are the working model (Rev x TCDLA; TCDLA agenda, Jan 2026). Public defender offices buy through county purchasing with CJIS- and NIST-style security questionnaires and US-residency attestations, and in Texas can use TIDC Improvement Grants — minimum $5,000, county match, annual cycle with a May priority deadline, multi-year grants from $50,000 — for "process improvement" technology but not routine upgrades (Delaware DOJ CMS RFP; TIDC FY2027 Improvement Grant RFA). The professional-tier document's county bid-threshold point — $100,000 from September 2025, making a five-seat Chambers licence an ordinary departmental purchase — stands (professional_tier_expansion.md §3.4).

Willingness to pay and reimbursability. An hour of record review is worth about $85–$200 to appointed counsel, $221 at Clio's Texas criminal average, and $368 at the State Bar median; the Fair Defense Act makes "reasonably necessary" investigative and expert expenses reimbursable with or without prior approval, and county schedules routinely reimburse investigation expenses with court approval, which is the doctrinal hook for vouchering a per-matter software fee — untested in any plan found (Task Force on Indigent Defense, Key Provisions; Young County fee schedule). The notes' sharper point is that reimbursement is secondary: at caps of $4,000–$7,500, a lawyer who spends 20–40 hours on a record is already at the cap, so cutting hours raises effective yield whether or not the fee is reimbursed. Price anchors for the professional tier are $89–$150 a month for subscriptions (Briefpoint, Clearbrief), $300–$1,300 per matter (Clearbrief per brief, TypeLaw with record hyperlinking), and $50 a seat a month to ~$1,300 an attorney a year for defender offices (Thomson Reuters' nonprofit price, JusticeText's Virginia contract). The professional-tier document's $199 Counsel Review, $99 Advocate seat and $249 Chambers seat sit inside those bands.

Channels. TCDLA is the hub: Rusty Duncan draws 850–1,000 attendees, a booth costs $1,000 and booths sold out by March 2025; the State Bar Appellate Section runs free online CLE and a Lunch & Learn series; the Texas Appellate Law Podcast has passed 145 episodes and covers criminal appellate practice; TIDC's grant trainings and county commissioners courts are the PDO decision venues; IPTX aggregates post-conviction demand (Rusty Duncan 2025 exhibitor packet; Texas Bar Journal section reports, 2025; Texas Appellate Law Podcast). Because TCDLA and HCCLA require a member endorsement to join, peer referral is structural; an "endorse a colleague" code mirrors the culture. Family-facing competitors set a demand-side anchor the consumer tier already exploits: a $5,000–$15,000 flat-fee human case review and a DIY 11.07 online course marketed against a "$20,000 to $50,000" attorney (Franklin-Best fee page; Blizzard Law course). The channel conflict the professional-tier document names — the consumer product sells for $299 what some writ practitioners sell for $3,000 — is real; the research adds that the honest answer ("the $3,000 was attorney hours") is also the economically correct one, and that leading with Persona 1 at the Appellate seminar avoids the conflict entirely (professional_tier_expansion.md §5.4).

What the engine already does for these personas

The development plan must start from the product as it exists, and it exists further along than the September 15 professional-tier document assumed. Prompt set v2, dated 2026-09-27 and selected by `ANALYSIS_PROMPT_SET` (set to v2 in render.yaml per the code comment, with production falling back to v1 if the variable is absent), runs **seven screens on a trial record** — `preserved_error`, `iac`, `brady`, `junk_science`, `sentencing`, `voir_dire` and `identification` — and two on a plea record (analysis.service.ts). The preserved-error prompt is already written as a direct-appeal lawyer would brief it: it tracks every objection to its ruling under TRAP 33.1, checks hearsay predicates (Article 38.072's age limit, excited-utterance timing, medical-diagnosis purpose), covers improper argument with the objection/instruction/mistrial sequence, vouching and bolstering, 403/404(b), the charge under *Almanza*, expert qualification and directed-verdict rulings, and asks for preservation (yes/partial/no) and the governing harm standard per finding. The identification screen covers array construction, administrator knowledge, facial-recognition seeding and the *Biggers* factors — the exact gap the Gary manual-versus-engine comparison identified (manual_vs_engine_gary_2026-09-27.md §7).

Every finding carries structured fields: `preserved`, `harmStandard`, a `vehicle` (direct appeal, writ, or either) derived deterministically from screen, category and preservation rather than asked of the model, a `develop` step — "the extra-record step that proves or rules it out" — and `dependsOn`, the records the finding needs that were not provided (analysis-

fields.ts). `priorityRank` sorts by severity, then preservation, then harm standard, then confidence — "the order an appellate lawyer sorts a brief" — and a void-sentence claim on the "either" path is not penalized for lacking a preservation call. `investigationChecklist` folds the `develop` steps into a de-duplicated to-do list, and the Part B renderer already prints "For counsel — issues by priority" and "Investigation checklist" (reports/index.ts). On the Gary reference case the engine found all five attorney-signed canaries where a founder-supplied manual review found one, and its dispositive findings — a $10,000 fine assessed where §12.42(c)(2) authorizes none, a preserved multiple-punishments double-jeopardy claim, the consecutive life sentences, the pen-packet identity linkage — all lived in the punishment phase the manual review never reached; the comparison also lists the engine's gaps (no identification analysis at the time, no vouching, no judicial demeanor, the Valero vape-pen contradiction) and warns that the eval gate has not yet been re-run on the production model (manual_vs_engine_gary_2026-09-27.md).

The operating layer is equally relevant. QA is automated with a 24-hour human-triage hold for failures and a one-variable kill switch; measured all-in tech cost per case is **$4.66 for a 602-page scanned record and $9.42 for a born-digital transcript-heavy one**, with the batch API halving model cost; the solo-founder cash break-even is about four cases a month (business_case_12mo.md §0, §5, §8c). The status page publishes durable `CaseEvent` facts and liveness pulses so a user sees "Check 4 of 7: sentencing problems, pass 1 of 2 · Now writing up what it found (6 min so far)," never shows finding counts before QA, and carries no legal content on the customer channel (status_page_live_feedback.md). The PRD's grounding rules — every finding resolves to a verifiable citation or is dropped, the renderer refuses a finding whose citation fails re-verification, Part B is framed as an inventory for counsel to complete because §4 makes the first writ the only writ — are the exact properties the sanctions cases and ethics opinions now demand (mvp_v1_prd.md FR-6 to FR-9). The professional-tier document's build estimate of about nine engineering-weeks included 1.5 weeks for the preserved-error screen; that work is done, which leaves the eval re-run as the gating cost and shifts the remaining budget toward surfaces and exports (professional_tier_expansion.md §6.1).

Development plan: three phases from Counsel Review to Chambers

The plan keeps the professional-tier document's shape and sequencing — per-record product first, seats second, offices third, no v3 workspace — and fills in the workflows, screens, inputs and outputs the research supports. Four design principles run through every phase. The artifact is the pitch: lawyers buy on a real Part B page with a volume-page-line cite and verbatim excerpt, not on a feature list. Verifiability is the product: every finding shows the page it came from, and the product never emits a case citation it has not been given — Part B cites statutes and doctrine categories, as the PRD already requires, and the research pitch stays forbidden. The lawyer is the reviewer: the template says "issues identified for counsel's evaluation," never an outcome probability, and the *Anders* appendix documents what was read rather than certifying there is nothing to find. And deadlines are labelled by consequence: jurisdictional (notice of appeal, PDR window, 11.072's 60 days) versus discretionary (the brief), chained from the dates the matter form captures.

Phase 0 — prove the seven screens on a lawyer's record (now to professional launch)

No new surfaces. Re-run the NFR-1 eval gate on prompt set v2 and the production model on both reference ledgers, as the Gary comparison requires. Add the two unadjudicated ledger candidates it proposes (photo-array procedure, relationship bolstering) and resolve the Carmona and Stutts identities against the record. Commission a **direct-appeal reference ledger**: a board-certified criminal appellate lawyer labels a second trial record for preserved objections, rulings, preservation posture and harm standard, because the five Gary canaries are writ-weighted and Persona 1's primary screen has never been scored against a direct-appeal issue list. Run the practitioner interviews in the final section; at least two must be appointed appellate counsel in flat-fee counties (Travis, Tarrant) and two writ practitioners. Have counsel review the attorney template variant, the work-product language, and the directory design under Occupations Code chapter 952 — the PRD's R-6 (mvp_v1_prd.md §8). Decide the professional sub-brand.

Phase 1 — Counsel Review on existing rails (first quarter of professional launch; the document's month 4)

The workflow. A lawyer lands on `/for-counsel`, signs up with email, password, bar number and practice type (private, PDO, clinic), which creates an ATTORNEY in a new tenant with the bar number queued for manual verification against the State Bar directory. The seven-question consumer eligibility wizard is replaced by a **matter form**: vehicle (direct appeal, PDR-clock-only, 11.07, 11.072, 11.09, §2254 follow-on), lane (trial or plea), county and court, offense and sentence, sentencing date, motion-for-new-trial date if any, record-filed dates, court-of-appeals judgment and mandate dates if any, prior writ history, and a free-text "evidence outside the record" note; capital cases are refused at this form exactly as the PRD refuses them at US-0. Upload reuses the presigned-S3, resumable, malware-scanned path, with one addition: **TAMES-volume recognition** that reads the Uniform-Format cover pages to label each PDF as clerk's record, reporter's record volume N of M, exhibit volume or supplemental record, echoes the inventory back ("RR vols. 1–7 of 7, CR, exhibit vol. 6 — no audio/video exhibits received"), and records what was not received. The progress page is the existing status page with the professional voice; the no-finding-counts-before-QA rule stays. The pipeline runs the lane's screens weighted by vehicle — direct appeal weights preserved error, voir dire and identification; 11.07 weights IAC, Brady, 11.073 and sentencing — and sampled rather than full QA applies to prose while citation re-verification stays 100% and blocking. Purchase is the existing Stripe Checkout one-time flow at **$199** with the 5,000-page cap and the $49 overage; a promo code covers pilot offices.

The output. A Part B-first PDF, with Part A available as an optional, off-by-default client letter. Part B gains five sections on top of the findings, the priority list and the investigation checklist that already render: a *record inventory* (volumes, pages, OCR confidence per volume, exclusions); a *deadline posture* block that adds the **TRAP clock** — notice of appeal 30/90 days from sentencing, record 60/120, brief 30 days after the later record, rehearing 15 days after judgment, PDR 30 days plus the 15-day extension window — alongside the existing 11.07/AEDPA/laches posture, each date labelled jurisdictional or discretionary and stamped "as of"; an ***Anders* diligence appendix** listing every screen run, every volume and page range read, and every item not reviewed, phrased as a record of process rather than a conclusion; for 11.07 matters, **findings grouped by candidate ground** with the vehicle label and §4-exception tag the consumer's subsequent-writ mode already computes, plus an **affidavit-topics list** — the IAC findings' `develop` steps rewritten as the specific questions trial counsel will be ordered to answer; and a per-finding **"verified against record"** mark backed by the existing hash-anchored re-verification. The document's UPL template variant — "issues identified for counsel's evaluation" — applies throughout, and the packet footer states it was prepared at counsel's direction for counsel's use.

Inputs and outputs by vehicle.

Vehicle	Inputs the matter form and upload collect	Outputs specific to the vehicle
Direct appeal	CR, RR volumes, exhibit volumes; judgment and sentence; charge; notice of appeal; sentencing, MNT and record-filed dates	Preserved-error ledger (objection → ruling → page → preserved → harm standard); issues by priority with vehicle labels; *Anders* diligence appendix; TRAP clock; *Kelly* and *Wilson* checklist items
PDR (clock only)	Court-of-appeals judgment date, rehearing motion dates	PDR and extension deadlines; *Wilson* post-affirmance letter reminder; no merits analysis (the engine reads records, not opinions)
11.07	Record; judgment; appellate opinion and mandate dates; prior writ history; trial-counsel file if held; new-evidence note	Findings by ground with §4 tags; affidavit topics; investigation checklist with `dependsOn` records; 11.07/AEDPA/laches posture; complete-inventory framing
11.072 / 11.09	Record or plea papers; community-supervision or misdemeanor status	Same screens; trial-court clock (State's answer, 60-day ruling); note that the ruling is appealable to the court of appeals
Plea convictions (any vehicle)	Plea papers, admonishments, judgment	Plea-lane screens as in the consumer product

Build and gate. Roughly four engineering-weeks per the professional-tier document's rows for tenancy surfaces, sign-up, matter form, billing reuse, template variant, ops and analytics, plus the volume-recognition and TRAP-clock increments. The gate to Phase 2 is the document's own: ten paid Counsel Reviews, at least two from the consumer referral loop, and attorney feedback on what the engine missed captured per finding (professional_tier_expansion.md §5.3).

Phase 2 — the Record Desk: verify, cite, export (months 4–8)

The workflow. The lawyer opens a delivered matter in the browser and works a **verification view**: the findings list on the left in priority order, filterable by screen, vehicle and preservation; on the right the record page the selected finding cites, with the verbatim excerpt highlighted; one click accepts, rejects or annotates the finding. This is the internal QA side-by-side workspace the PRD already describes for reviewers, exposed read-only to the ATTORNEY role and scoped to findings and pages — not the Neo4j graph, not chat, not drafting, so the professional-tier document's "what not to build" stands (mvp_v1_prd.md US-8; professional_tier_expansion.md §6.4). Every accept/reject is an attorney-labelled data point that flows into the eval ledgers — the second evidence stream the business case wanted for Gate 3, produced by the users best able to read output critically. From the verification view the lawyer exports.

The exports. A **statement-of-facts cite table** (DOCX and CSV): chronological record events with Texas-form citations ("3 RR 45"; "CR 112"), witness, exhibit and the excerpt, built from the entity index and timeline Part B already carries, so the brief's factual sentences start with their cites attached and the TRAP 38.1 waiver cases stop applying. A **preserved-error table** for the argument section: objection, ground, ruling, page, preservation, harm standard. An **11.07 form-fit export**: accepted findings mapped to numbered grounds, each ground's supporting-facts statement checked against the two-page budget, the memorandum against the 15,000-word budget, and a TRAP 73.1 compliance checklist (every ground on the form, each on a new page, verification page present); the form itself is the CCA's, and the product fills a structure, not an argument. A **TRAP 9.4 word-budget helper** that computes countable words for a pasted draft (excluding the caption, tables, issues, signature, certificates and appendix) and emits certificate-of-compliance text — trivial and sticky, and no vendor offers it. A **deadline calendar** per matter with ICS export and the jurisdictional/discretionary labels. **Checklist artifacts**: the *Anders* packet (motion to withdraw, client notice, form motion for pro se record access per *Kelly*) and the *Wilson* post-affirmance letter, as templates a licensed user completes. And an **activity log export** of the lawyer's own verification sessions, to support the tenth-of-an-hour itemization Travis requires and the HB 1445 itemization form — the product never bills or suggests billing AI-saved time, which Opinion 705 forbids (Opinion 705).

Billing. The **Advocate** seat at $99 a month with one Counsel Review included, via Stripe Checkout in subscription mode and the customer portal, plus the matter list with deadline posture on every matter. The $99 re-run with a supplemental record (a late exhibit volume, trial counsel's file) already exists and diffs against prior findings.

Build. Roughly four engineering-weeks: the viewer exposure and feedback capture (1.5), the three exports (1.5), the calendar and helper (0.5), seats (0.5 beyond the document's billing estimate). The gate to Phase 3 is per-case buyers converting to seats and at least one pilot office running five or more records.

Phase 3 — Chambers for offices, and the writ investigation layer (months 9–12 and beyond)

Office tenancy. The **Chambers** seat at $249 a month per attorney with free investigator and viewer seats, office admin, shared matters and a pilot-office flag — the existing multi-role RBAC. Three public defender pilots start free in Phase 1 on the county budget calendar (most Texas fiscal years begin 1 October) with the conversion ask framed as a TIDC Improvement Grant "process improvement" line — measured reduction in days from record-filed to brief-filed, or writ capacity added — because routine technology upgrades are ineligible (TIDC FY25 grant training). Coexist with LegalServer by export, not integration. Ship the county security packet: SOC 2 timeline, CJIS-aligned controls, US data residency, zero-retention provider attestations, a DPA, and a NIST AI RMF statement for TRAIGA's safe harbor (Perkins Coie on TRAIGA).

The investigation layer for writ practitioners and clinics. A **records tracker** on the investigation checklist: each `dependsOn` item (trial counsel's file, the prosecutor's file under a Michael Morton or discretionary request, lab bench notes, TDCJ time-credit records) carries requested/received/not-available states and a date, so the lawyer sees which findings are blocked on which records and the re-run picks up what arrives. The **A/V add-on** the roadmap already prices for v1.1 — jail

calls, bodycam, recorded hearings — transcribed and tied to the same cite-and-verify loop, because habeas investigators are the one population for whom JusticeText-class tooling and record review belong in one place. A **§2254 exhaustion map**: for each ground, where it was raised (direct appeal, PDR, 11.07) and the federal clock position, so federal counsel can see what is exhausted and what remains, with the tolling-direction rule the PRD already states. **Clinic intake mode**: consumer referral packets (US-5, consent-based) arriving in a clinic's Chambers tenant as pre-triaged matters, which is the Justice-tier seeding the business case gates on a 20% referral opt-in (business_case_12mo.md §8).

What is deliberately excluded. Case-law research and citator claims; drafting of argument; PDR merits analysis; capital 11.071 matters; the knowledge-graph and chat workspace. Each either competes with a free or entrenched incumbent, is argued on documents the engine does not read, or expands UPL and verification exposure without serving one of the five jobs.

The screens, in one place

Screen (route)	Phase	Reuses	New
`/for-counsel` landing	1	Design tokens, promo engine	Persona hero, real Part B page, three-column JTBD, "what it is not," pricing, trust, PDO pilot form
`/for-counsel/signup`	1	Auth, ATTORNEY role, tenancy	Bar number field and manual verification queue
New matter	1	Case creation, event-sourced lifecycle	Vehicle/lane/date form replacing the consumer wizard; capital refusal
Upload and record map	1	Presigned S3, checklist, echo-back, OCR gating, page meter	TAMES volume recognition; "not received" inventory
Progress	1	Status page facts and pulses	Professional voice; same no-counts rule
Packet download	1	PDF renderer, priority list, checklist	Inventory, TRAP clock, *Anders* appendix, grounds grouping, affidavit topics, verified mark
Record Desk (verify)	2	Internal QA side-by-side workspace	Read-only exposure to ATTORNEY; accept/reject/annotate; feedback into ledgers
Exports	2	Entity index, timeline, structured fields	Cite table, preserved-error table, 11.07 form-fit, 9.4 helper, checklists, activity log
Deadlines	2	Deadline engine	TRAP chain, labels, ICS
Matters list and seats	2	`/cases`, Stripe	Subscription mode, portal, posture per matter
Office admin	3	RBAC, ops tenant column	Seat management, investigator/viewer roles, pilot flag, security packet
Records tracker, A/V, exhaustion map, clinic intake	3	`dependsOn`, re-run, US-5 referral	Request states, media ingestion, per-ground exhaustion, clinic tenant inbound

Risks: UPL, confidentiality, AI-citation rules and the one-shot writ

Unauthorized practice. Selling to licensed lawyers lowers UPL exposure relative to the consumer tier but does not remove it. Government Code §81.101 defines practicing law to include advice and services requiring legal skill, and after the *Parsons Technology* injunction against Quicken Family Lawyer the Legislature excluded software that "clearly and conspicuously states" it is not a substitute for an attorney (Fifth Circuit, 179 F.3d 956; HB 1507 analysis, 1999). The risk zones in this plan are three: the optional Part A client letter, which is family-facing and must keep the consumer disclaimers and never reach the family except through the lawyer; the checklist templates and form-fit export, which must fill structure

rather than select strategy; and the referral directory, which the PRD already flags as a lawyer-referral service under Occupations Code chapter 952 unless it is a neutral directory with no matching and no per-referral consideration (mvp_v1_prd.md R-6). No Texas UPL Committee action on AI legal tools after 2020 was found, which is reassurance of a weak kind.

Confidentiality and work product. Texas Ethics Opinion 705 (February 2025) requires competence with the tool, vetting of the vendor's confidentiality and retention practices under Rule 1.05, independent verification of output, and no billing for time AI saved; ABA Formal Opinion 512 adds informed client consent before client information enters a self-learning tool, and says boilerplate engagement language is insufficient (Opinion 705; National Law Review on ABA 512). The product's zero-retention providers, no-training promise, deletion on request and RLS tenancy answer these directly and remove the per-client consent problem, provided the DPA and the `/for-counsel` trust section say so in the vendor's own words. Two conflicts are specific to this business. The same record can exist in a family's consumer tenant and a lawyer's professional tenant; the tenants must never see each other, and the consumer-to-counsel hand-off must happen through the family's consented download, not through any vendor-side link. And the vendor holds records from both sides of a channel conflict — a lawyer who declined a case and the family who then bought a review — which the engagement terms must address as the vendor holding no client relationship and no duty to either beyond the data promises. County buyers add CJIS and NIST expectations and US-residency attestations; those are a Phase 3 cost, not a Phase 1 blocker.

AI-citation rules. The sanctions trail now runs through Texas appellate courts: *Ex parte Lee* in the Tyler court (a criminal habeas appeal whose only three cited cases "were not real or did not support the propositions," with a footnote suspecting AI), the Dallas court's $2,500-plus-CLE order in 2025, a Travis County $2,000 order in October 2025, the Fifth Circuit's published *Fletcher* sanction in February 2026 for sixteen fabricated quotations, Judge Starr's 2023 certification order, and the Texas Supreme Court's proposed TRAP 9 and 52 amendments addressing "fabricated authorities, quotations, and holdings" with an expected 1 October 2026 effective date whose final adoption was not confirmed (TDCAA case summaries; Mealey's on Dallas COA; Bloomberg Law on Travis County; Texas Lawbook on Fletcher; Law360 on proposed rules). The failure mode courts now punish is fabricated *quotation*, not only fabricated case names, which is precisely what the engine's verbatim-excerpt hard filter prevents for record cites. The product's posture should be explicit: it emits record citations it can show on the page and doctrine categories, never case citations; every export carries the "verified against record" marks and a verification-log line the lawyer can rely on under a Starr-style certification; and the marketing never claims to eliminate verification, only to make it fast. NACDL's July 2026 white paper reframes the ethical question as a duty to use AI competently with mandatory verification, which is a sales lever and a design constraint in one (NACDL, Parity in Practice; Minnesota Lawyer, Aug 2026).

The 11.07 §4 one-shot problem, and its *Anders* twin. The gravest harm this product could do to a writ client is to make a lawyer believe the inventory is complete. The PRD's complete-inventory framing (FR-8) and subsequent-writ tagging (FR-9) already say that claims omitted from a first writ are ordinarily lost and that the report's findings are not the universe of available claims; the professional packet must say it more plainly, and the Record Desk must make "what was not reviewed" as prominent as what was found (mvp_v1_prd.md FR-8, FR-9). The direct-appeal twin is *Anders*: the standard is counsel's own "conscientious and thorough review of the law and facts," and an *Anders* brief or an ineffective-assistance-of-appellate-counsel claim that rests on a tool's summary creates exposure for the lawyer and reputational risk for the vendor (Kelly v. State). The diligence appendix is therefore a record of process that supports the lawyer's own reading — screens run, pages read, exclusions — and never a certification of no error. The engine's own models disagreed on whether the Gary cumulation order was dispositive or background, which is the right illustration for a lawyer: the product ranks, the lawyer decides (manual_vs_engine_gary_2026-09-27.md §5).

Other material risks. The professional-tier document's register — two go-to-markets on a two-engineer team, channel conflict at TCDLA, PDO procurement stalls, brand blocking Chambers, the eval gate, sampled QA missing a citation error, work-product objections, an adjacent vendor adding a criminal-record screen — stands, with the research sharpening two entries (professional_tier_expansion.md §7.5). The competitive risk is now named: Matey (Austin, $7.5M seed, selling to public defenders) and Rev (a TCDLA partner presenting "citation-first AI" in January 2026) are one product decision away from transcripts, so speed to a lawyer-visible artifact matters more than feature breadth. And the eval risk has a specific

face: the Brian ledger was 2/4 on the latest fresh run with run-variance remediation pending, and the production model has not been re-scored, so Phase 1 cannot ship on the Gary ledger alone (business_case_12mo.md §0).

Evidence gaps to close with practitioner interviews

The notes were explicit that tooling habits, hours per phase, and several Texas-specific figures are unsourced. The table lists what to ask, whom, and what decision the answer changes. Five to eight interviews — two appointed appellate counsel in flat-fee counties, one PD appellate chief, two writ practitioners, one innocence-organization screener, and ideally one CCA staff attorney or former one — would close most of it.

Gap	Who can answer	Decision it informs
Hours per phase on a felony appeal (reading, digest, research, drafting, admin) and pages per hour; whether digests and issue-cite tables are built, in what tool	Appointed appellate counsel; PD appellate chief	The time-saving claim on `/for-counsel`; whether the cite-table export is Phase 2 or Phase 1
Typical page and volume counts for a Texas felony jury-trial record; share of records with audio/video exhibits	Same; court reporters	Page cap and overage pricing; A/V add-on priority
TIDC's 2016 appellate caseload addendum recommendation and any time-per-record data (TIDC addendum)	Read the document; TIDC staff	The PDO pilot's measured outcome and the grant framing
Current Harris and Dallas appellate fee lines; Harris's post-2023 appellate hourly rate	County indigent-defense coordinators	Which counties are the per-record test beds for voucherability
Share of Texas appointed appeals ending in *Anders* briefs; share of issues lost under TRAP 33.1	PD appellate chief; court-of-appeals staff attorneys	How prominently to lead with the *Anders* appendix
Private retainer ranges for Texas criminal appeals and PDRs	Private appellate counsel	Whether Persona 1 has a retained segment worth a seat
Pro se versus counsel-filed share of 11.07 applications and the disposition breakdown (denied without written order, remanded, filed and set)	CCA annual reports FY20–FY25; former CCA staff attorney	The consumer-to-counsel referral size; the remand-driver claim about affidavits
How often trial courts appoint 11.07 counsel under §3(d) and Article 11.074; who pays for transcripts for indigent habeas applicants	Writ practitioners; Harris County PD post-conviction	Whether an appointed-writ segment exists for Chambers
How trial-counsel files and pre-2014 prosecutor files are actually obtained; how often they are unavailable	Writ practitioners	The records tracker's states and the `dependsOn` vocabulary
Whether any county plan has approved a software or AI expense for appointed counsel	TIDC; county coordinators	The reimbursability pitch
Whether CalendarRules, LawToolBox or Clio include TRAP and CCA rule sets	Vendors; one practitioner using each	Whether the deadline calendar is a differentiator or table stakes
What the current CCA 11.07 form looks like (fields, clerk's summary sheet) and whether a 2024–2026 revision exists	District clerk; CCA clerk	The form-fit export's structure
Final adoption and text of the Texas Supreme Court's AI-related TRAP 9/52 amendments and of the January 2026 Rule 9 changes	Read the orders once reachable	The verification-log line and certificate helper wording
TDCJ attorney-call, legal-visit and legal-mail practice; what writ lawyers wish families brought to intake	Writ practitioners; TIFA	The client-letter design and the consumer packet's hand-off

Gap	Who can answer	Decision it informs
What a PD appellate division would accept as a pilot outcome metric, and its county's budget calendar	Chief defenders in Bexar, Dallas, Harris, Travis	Pilot design and the Chambers conversion ask
The Texas Performance Guidelines' appellate section text (Guideline 10.x, 2021 update)	Read the Texas Bar Journal reprint	Whether the diligence appendix should map to named guideline duties

Conclusion

The research changes the professional-tier thesis in one direction only: it is more grounded than the September document could show. The economic driver for the direct-appeal lawyer is not abstract productivity but the arithmetic of a $2,000 flat fee against a record that regulators elsewhere price at fifty pages an hour; the driver for the writ lawyer is a $10,000 screening phase under a one-bite bar and a federal clock that punishes both haste and delay. Every incumbent that reads transcripts reads depositions, prices for firms ten times the size of the buyer, and now carries a hallucination record that Texas appellate courts have begun to sanction by rule. The engine, meanwhile, already produces the preservation posture, harm standard, vehicle, priority order and investigation steps a lawyer's own digest contains, and on its one adjudicated reference case it outperformed a human reader precisely where the human stopped reading.

What follows from that is a product discipline rather than a feature list. The thing to sell is the verified, page-anchored inventory and the clocks around it; the thing to build next is the surface on which a lawyer verifies, accepts and exports it, because verification is simultaneously the ethics requirement, the sanctions defense, the eval data source and the reason a lawyer will trust the inventory enough to brief from it. The decisions that remain are about posture — a brand a chief defender can write down, a directory a bar regulator can accept, an appendix that documents reading without pretending to replace it — and about one investment: a direct-appeal lawyer's labelled record, so that the persona with the shortest sales cycle and the clearest economics is sold a screen that has been scored against the way that persona actually reads.